

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANTE SMITH,

Petitioner

VS.

CIARRA WALKER-SMITH,

Respondent

) Case Number: FPT-23-378122

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Dante Smith (Father) and Respondent Ciarra Walker-Smith (Mother).
- 2) On June 5, 2026, Mother filed an Order to Show Cause and Affidavit for Contempt alleging 5 counts of contempt committed by Father. The matter was set for hearing on July 16, 2026.
- 3) As of July 9, 2026, no proof of personal service of the Order to Show Cause and Affidavit for Contempt was filed with the Court.
- 4) At the prior July 16, 2026 hearing, the Court continued the matter to August 27, 2026 to permit Mother to effectuate personal service on Father.
- 5) On August 13, 2026, Mother filed a Proof of Electronic Service indicating the Order to Show Cause and Affidavit for Contempt was served on Father by email.

B. Findings and Order

- 1) Per *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, personal service of Order to Show Cause and Affidavit for Contempt-on-contempt citee (i.e., Father) is required.

- 2) As such, the matter is hereby **continued – for one final time – to October 20, 2026 at 9:00 a.m. in Department 403** to permit Mother to effectuate personal service on Father.
- 3) If personal service is not effectuated prior to the next hearing date, the Court will vacate the hearing.
- 4) The Court will prepare the Findings and Order After Hearing.
- 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

REYNALDO D. GOMEZ HERNANDEZ,

Petitioner

VS.

CARLA CELIA DEASY,

Respondent

) Case Number: FPT-25-378712

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF REQUEST FOR ORDER - CHILD CUSTODY - VISITATION
(PARENTING TIME) CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Reynaldo C. Gomez Hernandez (Father) and Respondent Carla Celia Deasy (Mother). There is one minor child subject to these proceedings: Paloma Deasy (DOB: 09/19/17).
- 2) On May 4, 2026, Father filed a Request for Order seeking joint legal and joint physical custody and an increase in the parenting schedule.
- 3) On June 3, 2026, Mother filed a Responsive Declaration to Father's request wherein she requests that the Court keep the existing orders in place, with the only modification being to the number of video calls. Instead of every day, Mother is asking this Court to make the calls 4 times per week.
- 4) On June 8, 2026, Judgment was entered, which incorporate the Findings and Order After Hearing filed on March 13, 2026. Per the Judgment, Mother has sole legal and sole physical custody of the minor child. Father's parenting time is on alternating Sundays from 10:00 a.m. – 2:00 p.m. in

1 San Francisco. Father shall also have daily video calls at 6:30 p.m. for up to 15 minutes with the
2 minor child.

3 **B. Findings and Order**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.
- 8 2) Father's request to modify the existing parenting plan and custody order is DENIED as premature
9 – the Judgment was just entered in June of 2026. The Court will consider increasing Father's
10 parenting time after December 31, 2026.
- 11 3) After December 31, 2026, Father may file a new Request for Order if he seeks an increase in
12 parenting time, which shall contain specific information as to the status of the existing orders,
13 what new orders Father requests (i.e., what Father believes the new parenting plan should be),
14 and why the Court should increase his time.
- 15 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LISA LEE,

Petitioner

VS.

JOSEPH LEE,

Respondent

) Case Number: FMS-20-387324

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME), TIER 2 MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Lisa Lee (Mother) and Respondent, Joseph Lee (Father). They share one minor child: Noah N. Lee (DOB: 06/28/12).
- 2) On May 14, 2026, Mother filed an Ex Parte application seeking emergency orders for child custody, visitation, and a Tier II mediation. The Court DENIED emergency relief and set the matter for regular hearing on June 29, 2026.
- 3) On May 14, 2026, Father filed a Responsive Declaration to Mother's emergency request in which he asks the Court to deny Mother's request and continue with the joint legal/joint physical custody orders. In addition, he believes a week on/week off schedule would be in the minor child's best interest.
- 4) On June 22, 2026, Mother filed a supplemental declaration.
- 5) On June 29, 2026, Father filed an update declaration.

6) On June 29, 2026, the parties appeared at Readiness hearing and the Court referred the matter to FCS Mediation to occur on August 3, 2026 and set a return hearing on August 27, 2026.

7) The parties did not reach an agreement at mediation.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Both parents shall share joint legal and joint physical custody of the minor child.

3) The parenting schedule shall be on a two week on/two week off schedule with exchanges to occur on Sundays at 6:00 p.m. Father shall commence the two-week cycle on Sunday, August 30, 2026 at 6:00 p.m. Mother shall commence the two-week cycle on Sunday, September 6, 2026. The parties shall rotate every two weeks thereafter.

4) The parties may modify the parenting schedule by mutual written agreement.

5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WILLIAM AUBREY HAMBRICK,

Petitioner

VS.

ANGELA HUGHES,

Respondent

) Case Number: FMS-25-387582

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner William Aubrey Hambrick (Father) and Respondent Angela Hughes (Mother). They share one minor child: Layla Mae Hambrick (DOB: 02/11/21).
- 2) On June 5, 2026, Mother filed a Request for Order seeking orders for child custody, and visitation. Mother requests sole legal and sole physical custody of the minor child, with Father to have parenting time every other weekend on either Saturday or Sunday from 10:00 a.m. – 5:00 p.m., (i.e., no overnights). In addition, Mother requests exchanges occur at Fitness SF in Oakland or Sue Bierman Park in San Francisco.
- 3) On July 6, 2026, a Readiness hearing was conducted, and the Court referred the parties to FCS Mediation to occur on August 12, 2026 and a return hearing was calendared for August 27, 2026.
- 4) The parties did not reach an agreement at mediation.
- 5) Father did not submit a Responsive Declaration to Mother’s Request for Order.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother shall have sole legal and sole physical custody of the minor child.
- 3) Father's parenting time shall be on 1st and 3rd Saturdays of each month from 10:00 a.m. – 5:00 p.m.
- 4) Father shall also have parenting time on the 2nd and 4th Sundays of each month from 10:00 a.m. – 5:00 p.m.
- 5) Mother shall have care and custody of the minor child at all other times.
- 6) Exchanges shall occur at Fitness SF (600 Grand Ave., Oakland, CA) or Sue Bierman Park in San Francisco and Father shall inform Mother of his intent to exercise visitation no later than 4:00 p.m., on the Wednesday prior the weekend. He shall notify Mother in writing (i.e., email or text message) of his intent to exercise visitation on the upcoming Saturday or Sunday (depending on which weekend is being triggered) and also of the exchange location (i.e., Fitness SF or Sue Bierman Park).
- 7) A holiday schedule will not be implemented until such time as Father has exercised consistent visitation with the minor child for a minimum of six consecutive months.
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING; REQUEST FOR ORDER: CHILD SUPPORT, PROPERTY CONTROL,
PAYMENT OF RENT AND HOUSEHOLD EXPENSES

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Monika Mastalerek (Mother) and Respondent Daniel Lobert (Father). They share one minor child: Matthew (DOB: 11/27/18).
- 2) Per the Petition of Dissolution filed by Father 11/7/23, the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months. Per the Response and Request for Dissolution filed 2/25/25, Mother agrees the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months.
- 3) On 1/31/25, Mother filed an amended Petition for Dissolution indicating the parties separated on 1/31/25 for a marriage of 6 years and 8 months. On 2/25/25, Father filed a Response and Request for Dissolution indicating the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months.

- 1 4) On 12/4/25, the Court modified the initial 7/15/25 support order and ordered Father to pay
2 Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly
3 child support. The Court also ordered Father to continue to share equally the monthly rent
4 obligation so long as both parties continue to reside in the residence, issued orders regarding child
5 support add-on expenses, and maintained its prior work search order for Mother. See Findings
6 and Order After Hearing (FOAH) filed 12/24/25.
- 7 5) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29
8 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to
9 move out of the residence.
- 10 6) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child
11 every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday
12 evenings from pick-up after school to 8 pm on opposite weeks. See FOAH filed 5/5/26. A review
13 hearing on child custody and visitation was set for 7/23/26.
- 14 7) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
15 6/23/26. Mother sought orders requiring Father to: (a) pay his portion of the rent directly to the
16 landlord (and/or not deduct it from Mother's support payment unless the rent has been paid); (b)
17 continue paying support as ordered; (c) continue contributing to Mother's household expenses;
18 and (d) register and use Our Family Wizard (OFW) for communications regarding the minor
19 child.
- 20 8) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
21 share of her rent after being served with the ex parte Request for Order. Mother states that the
22 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
23 reiterates her request to use OFW for communications regarding the minor child.
- 24 9) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
25 that the Court should deny Mother's request for OFW. Father states the restraining order includes
26 a provision for brief, peaceful communication about the court-ordered visits only.
- 27 10) On 6/23/26, the Court continued the hearing to 7/21/26.
- 28 11) On 7/13/26, Mother filed a supplemental declaration and updated Income and Expense
29 Declaration. Mother attached a seek work log.

1 12) On 7/15/26, Father requested a continuance of the 7/21/26 hearing due to his medical condition
2 and submitted a doctor's letter stating that he is available for a hearing in August. Mother
3 objected to the continuance, in part, because of her request to travel to Poland prior to the start of
4 the school year. However, the Court continued the 7/21/26 hearing to 7/23/26 on the Court's own
5 motion.

6 13) On 7/20/26, Father filed a supplemental declaration asserting inaccuracies in Mother's
7 representation of her current financial situation and incomplete seek work efforts.

8 14) At the prior 7/23/26 hearing, the Court, in pertinent part:

- 9 a. Granted Father's request for a continuance of both the review hearing and Mother's
10 Request for Order filed April 24, 2026, for good cause shown to 8/27/26.
- 11 b. Granted Mother's request to travel to Poland with Matthew Lobert (DOB 11/27/18) prior
12 to the start of the school year and ordered Mother to provide Father with her itinerary for
13 airplane travel and accommodations and make Matthew available for telephone contact
14 (including Facetime©) on at least three occasions while overseas.
- 15 c. Ordered each party to file and serve current Income & Expense Declarations and
16 Statements of Support Calculations with a proposed XSpouse printout as required by the
17 SF Local Rules no later than 5 Court days prior to the next hearing.
- 18 d. Ordered the parties to exchange all documents required by Local Court Rule 11.7 A.2d.
19 no later than 5 court days prior to the next hearing.
- 20 e. Reserved jurisdiction over all outstanding issues, including spousal support and child
21 support.

22 15) On 08/20/26, Mother filed an updated Income and Expense Declaration.

23 16) On 08/20/26, Father filed an updated Income and Expense Declaration.

24 17) On 8/24/26, Mother filed a supplemental declaration.

25 18) On 8/25/26, Father filed a supplemental declaration.

26 **B. Findings and Order**

- 27 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
28 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
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violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEWART MCKENZIE,

Petitioner

VS.

LAYNE RINGGENBERG,

Respondent

) Case Number: FDI-25-801724

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE MOTION FOR SPOUSAL SUPPORT AND MOVE OUT ORDERS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Stewart McKenzie and Respondent Layne Ringgenberg.
- 2) On 7/22/26, Respondent filed a Request for Order seeking \$3,500 in temporary monthly spousal support, modification of the current order (requiring Respondent to vacate the marital residence by 8/1/26) to provide Respondent 30 days from the issuance of the support order to move out. Respondent asserts his rental applications for apartments have been rejected because his earnings are too low to qualify. Respondent states Petitioner currently pays \$3,100 in household expenses on the marital residence in lieu of support.
- 3) On 8/4/26, the parties filed a Stipulation and Order regarding the sale of the marital residence, which, in pertinent part, requires Respondent to vacate the property by 8/1/26.
- 4) On 8/14/26, Petitioner filed a Responsive Declaration in opposition to Respondent's request. Petitioner states he cannot afford to pay temporary monthly spousal support and is overextended on the costs he is currently covering on the marital residence. Petitioner offers to pay Respondent

1 a one-time cash payment from his IRA to help him secure alternative housing. Petitioner asserts it
2 has been more than 290 days since the parties first stipulated to Respondent vacating the marital
3 residence and Respondent is intentionally delaying.

4 5) On 8/14/26, Petitioner filed an Income and Expense Declaration.

5 6) On 8/20/26, Respondent filed a Reply Declaration asserting that a one-time cash payment from
6 Petitioner's IRA would not resolve the problem for the following reasons: (a) the rental
7 applications were denied due to insufficient income to meet the approval requirements (steady
8 income of two to three times the apartment rent); (b) the parties already agreed to division of the
9 IRA account. Respondent disputes that he is intentionally delaying.

10 7) On 8/20/26, Respondent filed an Income and Expense Declaration.

11 **B. Findings and Order**

12 1) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEFFAN MARTELL,

Petitioner

VS.

GENOA MARTELL,

Respondent

) Case Number: FDI-26-803018

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL SUPPORT, PROPERTY CONTROL, AND OTHER RE:
DEBT RESERVATION, INCOME DISCLOSURE, CONTEXTLOGIC PRESERVATION

TENTATIVE RULING

The matter was continued to 10/8/26 at 9 AM in Dept. 403 at Petitioner (and moving party) Steffan Martell's request. See Order on Request to Reschedule Hearing. **No appearances are required on 8/27/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTONIA ANN PENA,

Petitioner

VS.

JORGE LUIS PENA, SR.,

Respondent

) Case Number: FDI-86-855206

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PROPERTY CONTROL, POSTHUMOUS ENTRY OF PRE-
APPROVED QDRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Antonia Ann Martinez (hereafter “Martinez”) and Jorge Luis Peña, Sr. (hereafter “Peña”).
- 2) On 5/13/88, the Court entered Dissolution Judgment incorporating a Marital Settlement Agreement, which provides for, in pertinent part, Martinez to receive one half of Peña’s pension plan.
- 3) On 6/11/26, Martinez filed a Request for Order seeking to enforce the terms of the Dissolution Judgment dividing Peña’s pension benefit. Martinez states Peña, who remarried, passed away on 1/15/25. Martinez attaches a letter from the pension plan administrator and a proposed QDRO to her Request for Order. Martinez asserts that the plan administrator has approved the QDRO and confirmed that her interest is not being paid to the surviving spouse.
- 4) At the prior 7/23/26 hearing, the Court ordered:

- a. The Court recognizes that Martinez has a valid claim to the interest in Peña's pension benefits awarded to her in the Dissolution Judgment entered 5/13/88. (Cal. Prac. Guide: Family Law (The Rutter Group 2024) ¶ 8:1189.1.)
 - b. However, the Court also recognizes that it is undisputed that Peña remarried. Thus, surviving spouse benefits may be payable to Peña's new spouse, who was not noticed of this hearing.
 - c. The Court therefore finds good cause to **CONTINUE the hearing to 8/27/26 at 9 AM in Dept. 403** for Martinez to notice Peña's surviving spouse.
 - d. At least 16 Court days prior to the next hearing date, Martinez shall serve on Peña's surviving spouse the (a) 6/11/26 Request for Order, (b) Continuance Order contained herein, (c) a Blank Responsive Declaration; and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 5) On 7/23/26, Martinez filed a Proof of Service by Mail indicating the service was effectuated on Kathryn Jean Peña on 7/23/26.
 - 6) No additional pleadings were filed.

B. Findings and Order

- 1) Martinez's request to enforce the terms of the Dissolution Judgment dividing Peña's pension benefit in accordance with the proposed QDRO attached to her Request for Order is GRANTED.
- 2) The Court will review and sign the proposed QDRO attached to Peña's 6/11/26 Request for Order.
- 3) The Court will prepare the Findings and Order After Hearing.